

2022 and with a stay pending appeal, Plaintiffs argue that the trial would not take place within five years of filing the complaint. Plaintiffs argue that witness's memories will fade with time. Further, Plaintiffs argue that there will be inefficiency and injustice if a stay pending appeal is ordered in this case.

BNSF and Plaintiff Schaefer's reasons for requesting a stay are based primarily on the assumption that the Court's ruling on Oakley's motion for summary judgment was incorrect. The Court does not view its ruling on the summary judgment motion as a sufficient buttress to the stay request. In addition, BNSF and Schaefer's concerns about how the Court's ruling on Oakley's motion for summary judgment will affect the presentation of evidence at trial are better raised in motions in limine. Further, a delay pending appeal will likely delay this case by another two years. The Court exercises its discretion and denies the request for a stay.

3. 9:00 AM CASE NUMBER: C23-01955

CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE

***HEARING ON MOTION IN RE: COURT APPOINTED RECEIVER'S MOTION FOR AN ORDER APPROVING RECEIVER'S FINAL REPORT AND ACCOUNT, DISCHARGING RECEIVER, APPROVING FINAL FEES AND COSTS OF RECEIVER AND COUNSEL, APPROVING DISPOSITION OF CMD SALLOON, LLC'S ASSETS, AND TERMINATING RECEIVERSHIP.**

FILED BY:

TENTATIVE RULING:

Appearance required.

4. 9:00 AM CASE NUMBER: C24-01538

CASE NAME: FULLER PROPERTIES, LLC VS. SEQUOIA EQUITIES, INC.

***HEARING ON MOTION FOR DISCOVERY A PROTECTIVE ORDER, TO STAY ALL WRITTEN DISCOVERY, AND FOR THE ISSUANCE OF A CASE MANAGEMENT ORDER. FILED BY SEQUOIA EQUITIES, INC.**

FILED BY:

TENTATIVE RULING:

The hearing is continued to February 2, 2026, at 9 a.m. in Department 34 due to the continuance of the motion to consolidate in Case No. C23-02401 until January 22, 2026, in Department 39.

This lawsuit is assigned to Department 34 for all purposes, effective January 5, 2026.

5. 9:00 AM CASE NUMBER: C24-01538

CASE NAME: FULLER PROPERTIES, LLC VS. SEQUOIA EQUITIES, INC.

*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AS TO THE ENTIRE FIRST AMENDED COMPLAINT. FILED BY SEQUOIA EQUITIES.

FILED BY:

TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings filed by defendants Sequoia Equities, Inc. and Alder Creek Management, Inc. For the reasons set forth and on the grounds stated hereafter in the ruling, the motion for judgment on the pleadings is: (a) **granted as to Alder Creek as to all causes of action (1st through 11th C/As), with leave to amend;** (b) **granted as to Sequoia as to 1st through 5th, 7th, and 9th C/As, with leave to amend;** and (c) **denied as to Sequoia as to the 8th and 11th C/As.**

Background

Plaintiffs are approximately 60 entities, including lead plaintiff Fuller Properties, LLC, which own residential apartment buildings managed by defendant Sequoia Equities, Inc. Plaintiffs allege they each have a written property management agreement ("Management Agreement") with Sequoia to manage their apartment buildings, and they attach to their first amended complaint ("FAC") an example of the agreements. (FAC ¶¶ and Exh. A.)

In 2023, three individuals, current or former tenants of apartment buildings owned by one or more of the Plaintiffs in this case, filed a class action lawsuit against Sequoia, Alder Creek, and Plaintiffs, commencing the case *Ross, etc., et al. v. Sequoia Equities, Inc., etc., et al.*, Case No. MSC23-02401 (the "Class Action") pending in Department 39 of this Court. In this case, Plaintiffs filed an original complaint to which Sequoia and Alder Creek filed a demurrer. Before the demurrer was to be heard, Plaintiffs filed the FAC, the operative pleading in this case. Defendants did not file a demurrer to the FAC but now file a motion for judgment on the pleadings. Sequoia challenges nine of the eleven causes of action (all but the 6th C/A for breach of contract and 10th C/A for declaratory relief) for failure to state facts sufficient to state causes of action. Alder challenges all eleven causes of action against it.

Legal Standards Governing Motion for Judgment on the Pleadings

Code of Civil Procedure section 438 permits a defendant to move for judgment on the pleadings on the ground that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc. §§ 438(b)(1) and 438(c)(1)(B)(ii); *Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 ["Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]".]) (See also *Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 ["A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in." [Citation omitted.]".])

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.) The basis for judgment on the pleadings "shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 438(d).) As in